

C. Uniform Engine Fuels and Automotive Lubricants Inspection Law

as adopted by
The National Conference on Weights and Measures*

1. Background

In 1984, the National Conference on Weights and Measures (NCWM) adopted a section in the Uniform Regulation for the Method of Sale of Commodities requiring that motor fuel containing alcohol be labeled to disclose to the retail purchaser that the fuel contains alcohol. The delegates deemed this action necessary since motor vehicle manufacturers were qualifying their warranties with respect to some gasoline-alcohol blends, motor fuel users were complaining to weights and measures officials about fuel quality and vehicle performance, and the American Society for Testing and Materials (ASTM) had not yet finalized quality standards for oxygenated (which includes alcohol-containing) fuels. While many argued that weights and measures officials should not cross the line from quantity assurance programs to programs regulating quality, the delegates were persuaded that the issue needed immediate attention.

A Motor Fuels Task Force was appointed in 1984 to develop mechanisms for achieving uniformity in the evaluation and regulation of motor fuels. The Task Force developed the Uniform Motor Fuel Inspection Law and the Uniform Motor Fuel Regulation (see the Uniform Regulations section of this Handbook) to accompany the Law. The recommended Law required registration and certification of motor fuel as meeting ASTM standards. It established a motor fuel quality testing capability by the state. Funding for the installation and support of the testing facility was established by a fee per liter or per gallon on all fuel marketed within the state.

In 1992, the NCWM established the Petroleum Subcommittee under the Laws and Regulations Committee. The Subcommittee recommended major revisions to the Law that was adopted at the 80th NCWM in 1995. The scope of the Law was expanded to include all engine fuels, petroleum products, and automotive lubricants, and its title was changed accordingly. Other changes included expansion of the definitions section, limitation of the scope of the registration section to engine fuels designed for special use, and addition of sections on administrative and civil penalties and on criminal penalties.

In 2007 the Fuel and Lubricants Subcommittee (formerly the Petroleum Subcommittee) undertook a review of this uniform law to update it to eliminate reference to “petroleum products” and reflect the addition of new engine fuels to the marketplace. The amendments included new provisions to provide officials with the authority to review delivery records and grant waivers of requirements adopted under the law in times of emergency or natural disasters.

At the 2008 NCWM Interim Meeting, the Laws and Regulations Committee changed the Petroleum Subcommittee’s name to the Fuels and Lubricants Subcommittee (FALS) in recognition of its work with a wide variety of fuels including petroleum and biofuels.

2. Status of Promulgation

The current Uniform Engine Fuels and Automotive Lubricants Inspection Law was recommended for adoption by the Conference in 2008. The table beginning on page 10, Section II. Uniformity of Laws and Regulations of Handbook 130 shows the status of adoption of the law.

(Amended 2008)

**The National Conference on Weights and Measures (NCWM) is supported by the National Institute of Standards and Technology (NIST) in partial implementation of its statutory responsibility for “cooperation with the states in securing uniformity in weights and measures laws and methods of inspection.”*

THIS PAGE INTENTIONALLY LEFT BLANK

Uniform Engine Fuels and Automotive Lubricants Inspection Law

Table of Contents

<u>Section</u>	<u>Page</u>
<u>Section 1. Purpose.....</u>	<u>49</u>
<u>Section 2. Scope.....</u>	<u>49</u>
<u>Section 3. Definitions.....</u>	<u>49</u>
<u>3.1. Engine Fuel.....</u>	<u>49</u>
<u>3.2. Director.....</u>	<u>49</u>
<u>3.3. Person.....</u>	<u>49</u>
<u>3.4. ASTM International.....</u>	<u>49</u>
<u>3.5. Automotive Lubricants.....</u>	<u>49</u>
<u>3.6. Engine Fuel Designed for Special Use.....</u>	<u>49</u>
<u>3.7. Sold.....</u>	<u>49</u>
<u>3.8. Non-engine Fuels.....</u>	<u>49</u>
<u>Section 4. Administration, Adoption of Standards, and Rules.....</u>	<u>49</u>
<u>Section 5. General Duties and Powers.....</u>	<u>50</u>
<u>Section 6. Registration of Engine Fuels Designed for Special Use.....</u>	<u>50</u>
<u>Section 7. Inspection Fee.....</u>	<u>50</u>
<u>Section 8. Prohibited Acts.....</u>	<u>51</u>
<u>Section 9. Civil Penalties.....</u>	<u>51</u>
<u>9.1. Assessment of Penalties.....</u>	<u>51</u>
<u>9.2. Administrative Hearing.....</u>	<u>51</u>
<u>9.3. Collection of Penalties.....</u>	<u>51</u>
<u>Section 10. Criminal Penalties.....</u>	<u>51</u>
<u>10.1. Misdemeanor.....</u>	<u>51</u>
<u>10.2. Felony.....</u>	<u>52</u>
<u>Section 11. Restraining Order and Injunction.....</u>	<u>52</u>
<u>Section 12. Severability Provisions.....</u>	<u>52</u>
<u>Section 13. Repeal of Conflicting Laws.....</u>	<u>52</u>
<u>Section 14. Citation.....</u>	<u>52</u>
<u>Section 15. Effective Date.....</u>	<u>52</u>

THIS PAGE INTENTIONALLY LEFT BLANK

Uniform Engine Fuels and Automotive Lubricants Inspection Law

Section 1. Purpose

There should be uniform requirements for engine fuels, non-engine fuels, and automotive lubricants among the states. This Act provides for the establishment of quality specifications for these products.

(Amended 2008)

Section 2. Scope

The Act establishes a sampling, testing, and enforcement program, provides authority for fee collection, requires registration of engine fuels, and empowers the state to promulgate regulations as needed to carry out the provisions of the Act. It also provides for administrative, civil, and criminal penalties.

Section 3. Definitions

As used in this act:

3.1. Engine Fuel. – Any liquid or gaseous matter used for the generation of power in an internal combustion engine.

3.2. Director. – The _____ of the Department of _____ and designated agents.

3.3. Person. – An individual, corporation, company, society, association, partnership, or governmental entity.

3.4. ASTM International. (www.astm.org) – An international voluntary consensus standards organization formed for the development of standards on characteristics and performance of materials, products, systems, and services, and the promotion of related knowledge.

3.5. Automotive Lubricants. – Any material interposed between two surfaces that reduces the friction or wear between them.

3.6. Engine Fuel Designed for Special Use. – Engine fuels designated by the Director requiring registration. These fuels normally have no ASTM or other national consensus standards applying to their quality or usability; common special fuels are racing fuels and those intended for agricultural and other off-road applications.

3.7. Sold. – Kept, offered, or exposed for sale.

3.8. Non-engine Fuels. – Any liquid or gaseous matter used for the generation of heat, power, or similar uses.

(Added 2008)

Section 4. Administration, Adoption of Standards, and Rules

The provisions of this Act shall be administered by the Director. For the purpose of administering and giving effect to the provisions of this Act, the specification and test method standards set forth in the most recent version available of ASTM International standards as published on its website **www.astm.org** are adopted except as amended or modified as required by the Director to comply with federal and state laws. When no ASTM standard exists, other generally recognized national consensus standards may be used. The Director is empowered to write rules and regulations on the advertising, posting of prices, labeling, standards for, and identity of fuels, non-engine fuels, and automotive lubricants and is authorized to establish a testing laboratory.

(Amended 2008)

Section 5. General Duties and Powers

The Director shall have the authority to:

5.1. Enforce and administer all the provisions of this Act by inspections, analyses, and other appropriate actions.

5.2. Have access during normal business hours to all places where engine fuels, non-engine fuels, and automotive lubricants are kept, transferred, offered, exposed for sale, or sold for the purpose of examination, inspection, taking of samples, and review of fuel storage, receipts, transfers, sales records, or delivery records for determining compliance with this Act. If such access is refused by the owner, agent, or other persons leasing the same, the Director may obtain an administrative search warrant from a court of competent jurisdiction.

(Amended 2008)

5.3. Collect, or cause to be collected, samples of engine fuels, non-engine fuels, and automotive lubricants marketed in this state, and cause such samples to be tested or analyzed for compliance with the provisions of this Act.

(Amended 2008)

5.4. Define engine fuels for special use and refuse, revoke, suspend, or issue a stop-order if found not to be in compliance and remand stop-order if the engine fuel for special use is brought into full compliance with this Act.

5.5. Issue a stop-sale order for any engine fuel, non-engine fuels, and automotive lubricant found not to be in compliance and remand a stop-sale order if the engine fuel, petroleum product, or automotive lubricant is brought into full compliance with this Act.

(Amended 2008)

5.6. Refuse, revoke, or suspend the registration of an engine fuel, petroleum product, or automotive lubricant.

5.7. Delegate to appropriate personnel any of these responsibilities for the proper administration of this Act.

5.8. The Director is empowered to waive specific state requirements adopted under this Act or may establish alternative requirements for fuels as determined to be necessary in the event of an emergency or a natural disaster for a specified period of time.

(Added 2008)

Section 6. Registration of Engine Fuels Designed for Special Use

All engine fuels designed for special use must be registered with the Director. Such registration shall include:

6.1. Name, brand, or trademark under which the fuel will be sold.

6.2. Name and address of person registering the engine fuel.

6.3. The special use for which the engine fuel is designed.

6.4. A certification, declaration, or affidavit stating the fuel specifications.

Section 7. Inspection Fee

There shall be a fee of \$ _____ per appropriate unit of measure on all products covered under the scope of this Act marketed within this state for the purposes of administering and effectively enforcing the provisions of this Act.

Section 8. Prohibited Acts

It shall be unlawful to:

8.1. Represent engine fuels, non-engine fuels, or automotive lubricants in any manner that may deceive or tend to deceive the purchaser as to the nature, brand, price, quantity, and/or quality of such products.

(Amended 1996 and 2008)

8.2. Fail to register an engine fuel designed for special use.

8.3. Submit incorrect, misleading, or false information regarding the registration of an engine fuel designed for special use.

8.4. Hinder or obstruct the Director in the performance of the Director's duties.

8.5. Represent an engine fuel, non-engine fuels, or automotive lubricant that is contrary to the provisions of this Act.
(Amended 2008)

8.6. Represent automotive lubricants with an S.A.E. (Society of Automotive Engineers) viscosity grade or API (American Petroleum Institute) service classification other than those specified by the intended purchaser.

(Added 1996)

Section 9. Civil Penalties

9.1. Assessment of Penalties. – Any person who, by himself or herself, by his or her servant or agent, or as the servant or agent of another person commits any of the acts enumerated in Section 8. Prohibited Acts may be assessed by the _____ a civil penalty of:

(a) not less than \$ _____ nor more than \$ _____ for a first violation;

(b) not less than \$ _____ nor more than \$ _____ for a second violation within _____ from the date of the first violation; and

(c) not less than \$ _____ nor more than \$ _____ for a third violation within _____ from the date of the first violation.

9.2. Administrative Hearing. – Any person subject to a civil penalty shall have a right to request an administrative hearing within _____ days of receipt of the notice of the penalty. The Director or his/her designee shall be authorized to conduct the hearing after giving appropriate notice to the respondent. The decision of the Director shall be subject to appropriate judicial review.

9.3. Collection of Penalties. – If the respondent has exhausted his or her administrative appeals and the civil penalty has been upheld, he or she shall pay the civil penalty within _____ days after the effective date of the final decision. If the respondent fails to pay the penalty, a civil action may be brought by the Director in any court of competent jurisdiction to recover the penalty. Any civil penalty collected under this Act shall be transmitted to _____.

Section 10. Criminal Penalties

10.1. Misdemeanor. – Any person who violates any provision of this Act or regulations promulgated thereto shall be guilty of a Class _____ misdemeanor and upon conviction shall be punished by a fine of not less than \$ _____ nor more than \$ _____, or imprisonment for not less than _____ nor more than _____, or both.

10.2. Felony. – Any person who intentionally violates any provision of this Act or regulations promulgated thereto or is convicted under the misdemeanor provisions of this section more than three times in a two-year period shall be guilty of a Class _____ felony and upon conviction shall be punished by a fine of not less than \$ _____ nor more than \$ _____, or imprisonment for not less than _____ nor more than _____, or both.

Section 11. Restraining Order and Injunction

The Director is authorized to apply to any court of competent jurisdiction for a restraining order or a temporary or permanent injunction restraining any person from violating any provision of this Act.

Section 12. Severability Provisions

If any word, phrase, provision, or portion of this Act shall be held in a court of competent jurisdiction to be unconstitutional or invalid, the unconstitutionality or invalidity shall apply only to such word, phrase, provision, or portion, and for this purpose the provisions of this Act are declared to be severable.

Section 13. Repeal of Conflicting Laws

All laws and parts of laws contrary to or inconsistent with the provisions of this Act are repealed except as to offense committed, liabilities incurred, and claims made there under prior to the effective date of this Act.

Section 14. Citation

This Act may be cited as the “Engine Fuels and Automotive Lubricants Inspection Act of _____.”
(Amended 2008)

Section 15. Effective Date

This Act shall become effective on _____.

Overview of changes to provisions for community visitors

*Disability and Social Services Regulation Amendment
Act 2023*

OFFICIAL

OFFICIAL

Contents

1. Introduction.....	1
2. When will the changes commence?.....	2
3. Summary of the changes.....	2
3.1 Changes to the types of disability accommodation that community visitors can visit.....	2
Accommodation approved by the Minister.....	3
Functions of community visitors – accommodation approved by the Minister.....	4
Accommodation approved by the Victorian Senior Practitioner.....	4
Requests to see a Community Visitor.....	5
3.2 Further changes to the <i>Disability Act 2006</i> and <i>Residential Tenancies Act 1997</i>	5
New definition of SDA dwelling.....	5
Repeal of group home provisions.....	6
3.3 Offences.....	7
4. More information.....	7
4.1 Acts.....	8
4.2 Glossary of terms.....	8

Introduction

The *Disability and Social Services Regulation Amendment Act 2023* (the **Amendment Act**) became law on Tuesday 23 May 2023.

The Amendment Act makes changes to the *Disability Act 2006* (**Disability Act**), *Residential Tenancies Act 1997* (**Residential Tenancies Act**), and other relevant Acts to strengthen rights, protections, and safeguards for people with disability in Victoria.

This summary describes changes to provisions (rules) in the Disability Act for community visitors (**CV**) and related changes to the Residential Tenancies Act. The changes expand the types of disability accommodation that CVs can visit.

CVs are independent volunteers appointed by the Governor-in-Council and managed by the Office of the Public Advocate. Under Victorian legislation, CVs can visit and inspect certain types of disability accommodation, supported residential services and mental health facilities to inquire into the quality and standard of services provided to residents.

This summary is provided as general information only and is not legal advice. Readers should refer directly to the latest version of the Disability Act (and other Acts as relevant) and seek independent legal advice if required.

Links to more information, contacts and guidance for providers can be found at the end of this document. A glossary of key terms used in this paper is provided at **Table 2**.

When will the changes commence?

The changes described in this summary commence at different times.

The following changes commenced on 24 May 2023:

- changes to allow the Minister for Disability (the **Minister**) to approve accommodation as visitable by CVs (including related changes to the functions and powers of CVs, the rights of residents to request a visit, and the obligations of providers in respect of accommodation approved by the Minister)
- changes to allow the Victorian Senior Practitioner to inspect accommodation approved by the Minister
- changes to allow CVs to visit accommodation approved by the Victorian Senior Practitioner for the purposes of compulsory treatment.

All other changes described in this summary, including changes to the Residential Tenancies Act, will commence on 1 July 2024.

Summary of the changes

Changes to the types of disability accommodation that community visitors can visit

Currently, CVs are empowered under the Disability Act to visit the following types of accommodation (at any time and without prior agreement from service providers or residents):

- residential services (including ‘group homes’ gazetted under the Disability Act)
- residential treatment facilities
- short term accommodation
- Specialist disability accommodation (**SDA**) enrolled with the National Disability Insurance Scheme (**NDIS**) (**SDA enrolled dwelling**) where an SDA residency agreement is in place under Part 12A of the Residential Tenancies Act.

CVs can also visit an SDA enrolled dwelling where a residential rental agreement under Part 2 of the Residential Tenancies Act is in place, but only if requested by a resident or someone on their behalf.

Following the changes to the Disability Act that commenced on 23 May 2023, CVs can continue to visit these types of accommodation. In addition, CVs can now visit:

- accommodation approved by the Minister as visitable by CVs (Minister approved premises)

- ~~accommodation approved by the Victorian Senior Practitioner for the purposes of providing compulsory treatment.~~

Accommodation approved by the Minister

~~The Disability Act now allows for the Minister to approve disability accommodation provided by a disability service provider or registered NDIS provider as visitable by CVs. This will ensure that future disability accommodation models not currently covered by the legislation, but that may require independent monitoring, can be identified and approved as visitable by CVs if needed.~~

~~The Minister can approve accommodation where:~~

- ~~a person with disability lives and receives disability services; or~~
- ~~an NDIS participant lives and receives services under the NDIS; or~~
- ~~a Disability Support for Older Australians (DSOA) client lives and receives disability services from an NDIS provider.~~

~~The Minister cannot approve accommodation that is privately owned or rented by a person with disability, an NDIS participant, a DSOA client, or a family member of one of those persons. However, from 1 July 2024, accommodation that is rented by a person with disability or NDIS participant will be visitable by CVs where the accommodation meets the new definition of ‘SDA dwelling’ that will be inserted into the Residential Tenancies Act (refer to **New definition of SDA dwelling**).~~

~~The changes allow for:~~

- ~~CVs to visit Minister approved premises at any time and without prior agreement~~
- ~~the Minister to direct CVs to visit a Minister approved premises~~
- ~~the Victorian Senior Practitioner to inspect a Minister approved premises if the Victorian Senior Practitioner reasonably believes that restrictive practices or compulsory treatment are being used at the accommodation.~~

~~Accommodation approved by the Minister under these rules will be published in the Victoria Government Gazette.~~

Functions of community visitors – accommodation approved by the Minister

~~The Disability Act sets out the functions of CVs when visiting accommodation approved by the Minister. These functions include inquiring into:~~

- ~~the appropriateness and standard of the accommodation~~
- ~~opportunities for residents’ inclusion and participation in the community~~

- whether the services and information provided to residents are in accordance with the Disability Act and the *National Disability Insurance Scheme Act 2013 (Cth) (NDIS Act)*
- suspected abuse or neglect of a resident
- use of restrictive practices and compulsory treatment
- any failure to comply with the Disability Act or the NDIS Act
- any complaint made to a CV by a resident.

These functions are similar to the functions of CVs in relation to other types of visitable accommodation under the Disability Act.

Accommodation approved by the Victorian Senior Practitioner

The Disability Act now empowers the Victorian Senior Practitioner to approve accommodation as suitable for the provision of supervised treatment to a person under a supervised treatment order.

Accommodation approved by the Victorian Senior Practitioner is deemed to be a 'residential service' under the Disability Act and visitable by CVs. The existing functions and powers of CVs when visiting a residential service under the Disability Act have not changed.

For more information on changes to rules for compulsory treatment under the Disability Act, please access the *Overview of changes to provisions for compulsory treatment summary*.⁴

Requests to see a Community Visitor

A resident of accommodation approved by the Minister, or a resident of accommodation approved by the Victorian Senior Practitioner, or anyone on a resident's behalf, may request a visit from a CV.

Where a resident requests a visit, the disability service provider or registered NDIS provider must notify the Community Visitors Board within 72 hours of the request being received. Failure to comply with this obligation is an offence.

If the disability service provider or registered NDIS provider is present when a Community Visitor visits the accommodation, the provider must keep a record of the

⁴ Available from the Department of Families, Fairness and Housing *Disability and Social Services Regulation Amendment Act 2023* website <https://www.dffh.vic.gov.au/disability-and-social-services-regulation-amendment-act-2023>

visit. This is to ensure proper record keeping of visits. Failure to comply with this obligation is an offence.

Further changes to the Disability Act 2006 and Residential Tenancies Act 1997

The Amendment Act will make further changes to the Disability Act and the Residential Tenancies Act. These changes will commence on 1 July 2024. The changes will further expand the types of accommodation that CVs can visit under the Disability Act.

New definition of SDA dwelling

The changes will insert a new definition of ‘SDA dwelling’ into the Residential Tenancies Act.

The new definition of SDA dwelling will expand the types of accommodation that community visitors can visit under the Disability Act to include permanent long term accommodation where daily independent living support is provided to one or more residents and funded by a specified entity or program, in addition to SDA enrolled dwellings.

Specified entities and programs include:

- the Secretary to the Department of Families, Fairness and Housing; or
- the Transport Accident Commission; or
- the Victorian WorkCover Authority; or
- the NDIS; or
- the Commonwealth DSOA program or a prescribed program.

The definition of SDA dwelling does not include:

- accommodation that is not occupied under an SDA residency agreement or residential rental agreement under the Residential Tenancies Act
- accommodation occupied under a residential rental agreement where the residential rental provider and, if appropriate, the head renter of the accommodation:
 - does not receive funding from a specified entity or program to provide disability support at the accommodation; and
 - has not entered into an agreement with a specified entity or program to provide disability support at the accommodation.
- a health or residential service

- ~~temporary crisis accommodation~~
- ~~short term accommodation or accommodation that is used to provide respite or transitional accommodation.~~

~~Once the changes to the Residential Tenancies Act commence on 1 July 2024, CVs will be empowered to visit an SDA dwelling occupied under an SDA residency agreement at any time and without prior notice.~~

~~Where an SDA dwelling is occupied under a residential rental agreement, CVs will be empowered to visit the accommodation only if requested by a resident, or if requested by another person on behalf of the resident.~~

~~For more information on the changes to the Residential Tenancies Act, please access the *Overview of changes to the Residential Tenancies Act 1997* summary.²~~

~~Repeal of group home provisions~~

~~The Amendment Act will repeal (delete) Part 5 Division 2 of the Disability Act which relates to group homes. These changes will commence on 1 July 2024.~~

~~When these changes commence, group homes currently gazetted under the Disability Act will automatically become SDA dwellings and residents will automatically become SDA residents under the Residential Tenancies Act.~~

~~A residential statement provided to residents of gazetted group homes under the Disability Act will automatically become an ‘SDA residency agreement’. This means that residents will receive immediate protections under Part 12A of the Residential Tenancies Act.~~

~~For more information on the changes to residential services, please access the *Overview of changes to provisions for residential services* summary.³~~

~~For more information on the changes to the Residential Tenancies Act, please access the *Overview of changes to the Residential Tenancies Act 1997* summary.⁴~~

² Available from the Department of Families, Fairness and Housing *Disability and Social Services Regulation Amendment Act 2023* website <https://www.dffh.vic.gov.au/disability-and-social-services-regulation-amendment-act-2023>

³ Available from the Department of Families, Fairness and Housing *Disability and Social Services Regulation Amendment Act 2023* website <https://www.dffh.vic.gov.au/disability-and-social-services-regulation-amendment-act-2023>

⁴ Available from the Department of Families, Fairness and Housing *Disability and Social Services Regulation Amendment Act 2023* website <https://www.dffh.vic.gov.au/disability-and-social-services-regulation-amendment-act-2023>

Offences

The Amendment Act inserts two new offences into the Disability Act regarding Minister approved accommodation:

- It is an offence for a disability service provider or registered NDIS provider of a Minister approved accommodation not to notify the CVs Board within 72 hours of receiving a CV visit request
- It is an offence for a disability service provider or registered NDIS provider who is present when a CV visits accommodation approved by the Minister to not to keep a record of the visit.

Each offence is punishable by a maximum penalty of 5 penalty units. For the period 1 July 2023 to 30 June 2024, the value of one penalty unit is set at \$192.31.

More information

Links to the Amendment Act and other Acts mentioned in this summary are listed in **Table 1**.

For more information about the Victorian CVs program, visit the **Office of the Public Advocate's CVs website**.

A factsheet and other summaries about the changes made by the Amendment Act are available on the Department of Families, Fairness and Housing **Disability and Social Services Regulation Amendment Act 2023 website**.⁵

⁵ <https://www.dffh.vic.gov.au/disability-and-social-services-regulation-amendment-act-2023>

Acts

Table 1. Links to relevant Acts

Act	Where to find it
Disability and Social Services Regulation Amendment Act 2023 (Amendment Act)	Victorian Legislation Disability and Social Services Regulation Amendment Act 2023 website⁶
Disability Act 2006 (Disability Act)	Victorian Legislation Disability Act 2006 website⁷
National Disability Insurance Scheme Act 2013 (Cth) (NDIS Act)	Federal Register of Legislation National Disability Insurance Scheme Act 2013 website⁸
Residential Tenancies Act 1997 (Residential Tenancies Act)	Victorian Legislation Residential Tenancies Act 1997 website⁹

Glossary of terms

Table 2. Key terms

Term	Meaning
Act	In Victoria, an Act is a law that has been passed by both houses of Parliament and assented to by the Governor of Victoria (Royal Assent).
Amendment	An amendment is a change made to an existing law or regulation. It is a formal process that involves changing, adding, or deleting provisions in a law or regulation.
Commencement	Commencement means the time when provisions (rules) in an Act come into effect. Commencement provisions are included

⁶ <https://www.legislation.vic.gov.au/as-made/acts/disability-and-social-services-regulation-amendment-act-2023>

⁷ <https://www.legislation.vic.gov.au/in-force/acts/disability-act-2006>

⁸ <https://www.legislation.gov.au/C2013A00020/latest/text>

⁹ <https://www.legislation.vic.gov.au/in-force/acts/residential-tenancies-act-1997/104>

Term	Meaning
	in an Act. They specify the date on which a whole Act, or different parts of an Act, come into effect.
CV	Community visitors
Disability service provider	In this document, ‘disability service provider’ means a provider who is: • a person or body registered on the register of disability service providers under the Disability Act; or • the Secretary to the Department of Families, Fairness and Housing. Note: some providers may be both a ‘disability service provider’ under the Disability Act, and a registered NDIS provider.
DSOA	Disability Support for Older Australians program (Commonwealth)
NDIS	National Disability Insurance Scheme
Head renter	The head renter is the person whose name is on a residential rental agreement with a residential rental provider.
Registered NDIS provider	In this document, registered NDIS provider means an individual or organisation that is registered with the NDIS Quality and Safeguards Commission.
Residential rental agreement	A residential rental agreement is an agreement established under Part 2 of the Residential Tenancies Act. It used to be called a lease or a residential tenancy agreement.
Residential rental provider	A residential rental provider is the person who provides accommodation for rental under a residential rental agreement. A residential rental provider used to be called a landlord.
SDA	Specialist disability accommodation is accommodation for people with disability with high support needs. SDA may be occupied by only one person with disability or shared with other people with disability.

Term	Meaning
SDA residency agreement	An agreement entered into or established under Part 12A of the Residential Tenancies Act. SDA residency agreements are similar to residential rental agreements but include additional protections for SDA residents.
Victoria Government Gazette	The Victoria Government Gazette provides official notification of decisions or actions taken by, or information from, the Governor of Victoria, government authorities, government departments, local councils, companies and individuals. To access the gazette, visit the Victoria Government Gazette website . ⁴⁰

To receive this document in another format, phone (03) 9821 6113 or email the Disability Act Review Team DisabilityActReview@dffh.vic.gov.au

Help for people with hearing or speech communication difficulties

Contact us through the National Relay Service (NRS). For more information on the NRS:

- visit **National Relay Service** <https://www.accesshub.gov.au/about-the-nrs>
- call the NRS Helpdesk on 1800 555 660.

Authorised and published by the Victorian Government, 1 Treasury Place, Melbourne.
© State of Victoria, Australia, Department of Families, Fairness and Housing, May 2024.
ISBN 978 1 76130 501 6 (pdf/online/MS word)
Available at the department's Disability and Social Services Regulation Amendment Act 2023 web page
<https://www.dffh.vic.gov.au/disability-and-social-services-regulation-amendment-act-2023>.

⁴⁰<https://www.gazette.vic.gov.au>